

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-21

MRSF, Inc.

v.

YANG MING MARINE TRANSPORT CORPORATION

JOINT STATUS REPORT

On March 2, 2023, the Presiding Officer held a remote conference at the request of the Parties to discuss discovery matters. In addition to the Presiding Officer, those present were Kevin Williams, representing Complainant, and Eric Jeffrey, Rebecca Fenneman and Nicholas Webb, representing Respondent. The Parties agreed that the conference would not be recorded.

The conference was held to discuss three matters: (1) Complainant's non-response to Respondent's Supplemental Discovery Requests; (2) Respondent's discovery requests for service contracts between Complainant and carriers other than Respondent; and (3) the status of Respondent's withdrawal of certain aspects of its January 30, 2023 Motion to Compel.

This Joint Status Report summarizes the discussion and the Presiding Officer's instructions as to each of these issues.

With respect to Issue (1) above, counsel for Respondent explained that it had timely served Supplemental Discovery on Complainant according to the Procedural Order but that no responses had been served as of yet. Counsel for Complainants agreed to provide such responses by March 10, 2023, a date agreed to by the Parties and accepted by the Presiding Officer. Counsel for Respondent represented that it would work with Counsel for Complainant to see if the requests could be narrowed and the burden otherwise narrowed.

As to Issue (3), Counsel for Complainant verbally represented that its production regarding each of the items Respondent had conditionally withdrawn was complete. Based on that representation, Counsel for Respondent stated that the condition had been satisfied and so the withdrawal was finalized.

As to Issue (2) above, counsel for Respondent explained that discovery regarding service contracts that Complainant may have with other ocean common carriers was required for its defense of Complainant's claims that Respondent was responsible for any damages and to measure the extent of those alleged damages. Counsel for Respondent agreed that Complainant did not need to produce the actual contracts themselves, but rather, could produce information regarding the contracts and their use, with Counsel for Complainant to consult with his client and then with Counsel for Respondent Complainant as to how this may be efficiently done.

The Presiding Officer ordered:

- (1) Complainant to respond to all outstanding discovery requests, in accordance with the discussion above, by March 10, 2023; and
- (2) The Parties to confer about on what service contract information Complainant could produce within the agreed time frame.

Dated: March 3, 2023

Respectfully submitted,

By: /s/ RF for Kevin Williams

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By: /s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 3rd day of March, 2023, a true and correct copy of the foregoing document was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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